

SENATE BILL 2318

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to charter schools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-13-104, is amended by deleting subdivision (16) and substituting instead the following:

(16) "Sponsor" means a proposed governing body filing an application for the establishment of a public charter school that is not a:

- (A) For-profit entity;
- (B) Nonpublic school, as defined in § 49-6-3001; or
- (C) Postsecondary institution not regionally accredited;

SECTION 2. Tennessee Code Annotated, Section 49-13-106, is amended by deleting subsection (c) and substituting instead the following:

(c)

(1) A nonpublic school, as defined in § 49-6-3001, shall not establish a public charter school pursuant to this chapter.

(2) A private postsecondary institution, including a private postsecondary institution that is religiously affiliated, that maintains a campus in this state may establish a public charter school pursuant to this chapter.

SECTION 3. Tennessee Code Annotated, Section 49-13-102(e), is amended by deleting the language "the state's public higher education institutions" and substituting instead the language "the postsecondary institutions in this state".

SECTION 4. Tennessee Code Annotated, Section 49-13-108(i), is amended by deleting the language "public institution of higher education" wherever it appears in the subsection and

substituting instead the language "postsecondary institution" and by deleting the language "public institution of higher education's" in subdivision (2) and substituting instead the language "postsecondary institution's".

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.